

TENTATIVE RULING(S) FOR August 4, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2406055

Padilla v. Del Rosa Villalence OPCO, LLC et al

Before the Court is Plaintiff Padilla's Motion to Strike or Tax Costs, filed March 13, 2026, directed to Defendants 2018 N. Del Rosa Avenue PROPCO, LLC, Providence Group, Inc. and Providence Group of Southern California, LLC's Memoranda of Costs filed February 27, 2026. The Court considered the motion under CCP §§ 1032, 1033.5, and CRC 3.1700.

Defendants did not file opposition to Plaintiff's Motion to Strike or Tax Costs.

After review of the parties' papers and the governing authorities, the Court rules as follows.

1. Plaintiff's Motion to Strike or Tax Costs as to **Defendant Providence Group, Inc.** is DENIED in its entirety:

Item 4 (Depositions): Providence Group, Inc. incurred \$1,854.19 for seven depositions: Luke McDermott, Brenna Gudino, Tracie Orwig, Misty Barrios, Olivia Hall, Jose Sencion Padilla, and Ruben Sencion. The Court finds these depositions reasonably necessary in the conduct of this litigation. Plaintiff's objections relating to any expedited transcripts are overruled because Providence Group, Inc. is not requesting expedited transcript charges.

Item 5 (Service of Process): Providence Group, Inc. incurred \$344.28 to obtain medical records from Arrowhead Regional Medical and Redland Community Hospital. The Court finds these expenses reasonable necessary in the conduct of litigation.

Item 12 (Interpreter Fees): Providence Group, Inc. incurred \$225 for language interpretation of deponent Jose Sencion Padilla. The Court finds this expense reasonable and necessary. Interpreter fees are reasonable and necessary where needed in taking deposition testimony.

Item 14 (Electronic Filing Fees): Defendant Providence Group, Inc. is not seeking electronic filing fees; thus, Plaintiff's motion to tax is denied.

2. Plaintiff's Unopposed Motion to Strike or Tax Costs as to **Defendants 2018 N. Del Rosa Avenue Propco, LLC and Providence Group of Southern California, LLC** is GRANTED in its entirety